

Present:

Mr. Justice Md. Shohrowardi

Criminal Appeal No. 4931 of 2020

Masum Chowdhury (Apu)

...Appellant

-Versus-

The State and another

...Respondents

Mr. Majedul Hasan Miajee, Advocate

...For the Appellant

Mr. Md. Sarwar Alam, Advocate

...For respondent No. 2

Mr. S.M Golam Mostofa Tara, DAG with

Mr. A. Mannan, AAG with

.....for the State.

Heard on 12.07.2023, 26.07.2023,

Judgment delivered on 03.08.2023

This appeal under Section 410 of the Code of Criminal Procedure, 1898 is directed against the judgment and order dated 13.07.2015 passed by Additional Sessions Judge, Second Court, Narayanganj in Sessions Case No. 54 of 2015 arising out of C.R. Case No. 502 of 2014 convicting the appellant under Section 138 of the Negotiable Instruments Act, 1881 and sentencing him to suffer simple imprisonment for 1(one) years and to pay a fine of Tk. 11,00,000.

The prosecution case, in short, is that the accused Masum Chowdhury Apu issued cheque No. 6046592 dated 15.06.2014 (exhibit-1) drawn on Dutch Bangla Bank Limited for payment of Tk. 1100,000 to the complainant and on 26.06.2014 the complainant presented the said cheque for encashment. After that, the bank returned the cheque with a remarks “exceeds arrangement (exhibit-2).” The complainant informed the matter of dishonour of cheque to the accused verbally and over telephone and requested him to pay the cheque amount. Subsequently, she issued a notice on 23.07.2014 (exhibit-3) through registered post with AD (exhibit-4) which was received on 04.08.2014 by the accused (exhibit-4). The complainant proved the registered postal receipt as

exhibit-5. After receipt of the legal notice, the accused did not pay the cheque amount within time. Subsequently, she filed the complaint petition on 30.09.2014(exhibit-6).

The learned Advocate Mr. Majedul Hasan Miajee appearing on behalf of the accused submits that the accused and the complainant settled the dispute between them out of court and the entire cheque amount was paid by the accused to the complainant. Therefore, he prayed for acquittal of the accused from the charge levelled against him.

The learned Advocate Mr. Md. Sarwar Alam appearing on behalf of the complainant respondent No. 2 submits that he received the entire cheque amount from the accused and he has no claim against the cheque.

I have considered the submission of the learned Advocate Mr. Majedul Hasan Miajee who appeared on behalf of the accused and the learned Advocate Mr. Md. Sarwar Alam who appeared on behalf of the respondent No. 2, perused the evidence, impugned judgment and order passed by the trial court and the records.

On a bare reading of Negotiable Instruments Act, 1881, it reveals that the offence under section 138 of the Negotiable Instruments Act, 1881 is not compoundable. Therefore, the settlement made between the parties out of Court cannot be accepted.

No argument has been advanced on behalf of the accused that the complaint petition was filed without complying the procedure provided in section 138 of the Negotiable Instruments Act, 1881. The accused admitted that the complainant issued the cheque in favour of the complainant respondent No. 2. During trial, the complainant proved the dishonoured cheque as exhibit-1 and the dishonour slip as exhibit-2, legal notice as exhibit-3 and the letter of acknowledgment as exhibit-4, the registered postal receipt with AD as exhibit-5, the complaint petition as exhibit-6 and the signatures of complainant in the complaint petition as exhibits-6/1, 6/2, 6/3 and 6/4.

There is a presumption under section 118(a) of the Negotiable Instruments Act, 1881 that every negotiable instrument was made or drawn for consideration, and that every such instrument, when it has been accepted, indorsed, negotiated or transferred, was accepted, indorsed, negotiated or transferred for consideration. The presumption under Section 118(a) is rebuttable. The accused neither adduced evidence nor cross-examined P.W. 1 to rebut the presumption under Section 118(a) of the said Act. Therefore, I am of the view that the accused issued the cheque in favour of the payee-complainant for consideration. After service of notice in writing the accused failed to pay the cheque amount. Thereby the accused committed an offence under Section 138 of the Negotiable Instruments Act, 1881 and the complainant filed the case following all procedure provided in Section 138 of the Negotiable Instruments Act, 1881. The prosecution proved the charge against the accused beyond all reasonable doubt and the trial Court after proper assessment of evidence legally passed the impugned judgment and order.

In view of the above findings, observation, evidence and the proposition, I am of the view that the complainant proved the charge against the accused to the hilt beyond all reasonable doubt.

Considering the gravity of the offence, I am of the view that ends of the justice would be best served if the sentence passed by the trial court is modified as under;

The accused Masum Chowdhury(Apu) is found guilty of the offence under section 138 of the Negotiable Instruments Act, 1881 and he is sentenced to pay a fine of Tk. 11,00,000 (eleven lac).

Since the accused already paid the entire cheque amount to the complainant respondent, he is not required to deposit the fine amount again.

The appeal is disposed of with modification of sentence.

The trial Court is directed to allow the complainant-respondent No. 2 to withdraw 50% of the cheque amount paid earlier by the accused.

Send down the lower Court's records at once.